

We have had broad propositions pressed upon us for decision. On behalf of the Government it has been urged that the executive department heads have power to withhold any documents in their custody from judicial view if they deem it to be in the public interest.⁹ Respondents have asserted that the executive's power to withhold documents was waived by the Tort Claims Act. Both positions have constitutional overtones which we find it unnecessary to pass upon, there being a narrower ground for decision. *Touhy v. Ragen*, 340 U. S. 462 (1951); *Rescue Army v. Municipal Court of Los Angeles*, 331 U. S. 549, 574-585 (1947).

The Tort Claims Act expressly makes the Federal Rules of Civil Procedure applicable to suits against the United States.¹⁰ The judgment in this case imposed liability upon the Government by operation of Rule 37, for refusal to produce documents under Rule 34. Since Rule 34 compels production only of matters "not privileged," the essential question is whether there was a valid claim of privilege under the Rule. We hold that there was, and that, therefore, the judgment below subjected the United States to liability on terms to which Congress did not consent by the Tort Claims Act.

We think it should be clear that the term "not privileged," as used in Rule 34, refers to "privileges" as that term is understood in the law of evidence. When the Secretary of the Air Force lodged his formal "Claim of Privilege," he attempted therein to invoke the privilege against revealing military secrets, a privilege which is well

⁹ While claim of executive power to suppress documents is based more immediately upon R. S. § 161 (see *supra*, note 4), the roots go much deeper. It is said that R. S. § 161 is only a legislative recognition of an inherent executive power which is protected in the constitutional system of separation of power.

¹⁰ 28 U. S. C. (1946 ed.) § 932; *United States v. Yellow Cab Co.*, 340 U. S. 543, 553 (1951).